

Ram Singh Yadav v. Chairman, U.P. Power Corporation Ltd. and others

High Court of Judicature at Allahabad · Division Bench · 17 February 2023 · Writ - C No. 3505 of 2023 · **Disposed for a fresh Supply Code order after hearing**

HEADNOTE

The licensee withdrew the impugned recovery of electricity dues assessed for alleged theft and undertook to pass a fresh order after hearing the consumer. The writ was disposed of with liberty to pass that order strictly in accordance with the procedure under the Electricity Supply Code, 2005. The Court did not decide the legality of the assessment notice dated 5 January 2021.

FACTUAL SUMMARY

Ram Singh Yadav challenged an assessment notice dated 5 January 2021 and consequential orders of respondent no. 3 recovering electricity dues said to arise from theft. The respondents were the Chairman, U.P. Power Corporation Ltd. and two others. On 1 February 2023 the Allahabad High Court gave the department two weeks to obtain instructions. On 17 February 2023 counsel for respondent nos. 2 and 3, confirmed by a short counter-affidavit, stated that the impugned recovery had been withdrawn and that a fresh order would be passed after hearing the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.14

Fresh theft-assessment order after hearing

HOLDING

Where the licensee withdraws the impugned recovery of electricity dues in a theft case and states that a fresh order will be passed after hearing the consumer, the writ is disposed of with liberty to the respondents to pass that fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

¶ 2

FLAG The order does not cite a clause number. Keyed to catalog hit UP-2005::5.14 as the fresh-order-after-hearing procedure. UP-2005::5.12 and UP-2005::6.5.14 are not cited either.

PRINCIPLE TAGS

fresh-assessment-order-after-hearing The writ was disposed, on the licensee's withdrawal of the theft recovery, with liberty to pass a fresh order only after hearing and strictly under the Electricity Supply Code, 2005. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT NOTICE DATED 5 JANUARY 2021 AND THE CONSEQUENTIAL THEFT RECOVERY WERE LAWFUL, AND WHAT DUES IF ANY ARE PAYABLE

The impugned recovery was withdrawn by the licensee. Liability is left to the fresh order after hearing. ¶ 2